

Indictable Offences in Victoria
Evidence
Expert evidence
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14 Expert evidence

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[14.10] Expert evidence in criminal proceedings

Expert evidence is a fundamental part of the capacity of the prosecution to prove its case in many indictable offences. It can also be crucial to the mounting of an effective defence. The role of expert evidence is to provide to the trier of fact “an inference which the judge or jury, due to the technical nature of the facts, is unable to formulate”: [Quick v Stoland \(1998\) 157 ALR 615 at 625](#); see too [R v J-LJ \[2000\] SCC 51 at \[56\]](#).

Expert evidence takes three forms:

- evidence in the form of fact;
- evidence in the form of opinion; and

- evidence in the form of conjecture or guesswork.

The latter form of evidence is not admissible: *HG v The Queen* (1999) 197 CLR 414.

The distinction between expert evidence in the form of opinion and fact can be fine (*Allstate Life Insurance Co v Australia & New Zealand Banking Group Ltd (No 5)* (1996) 64 FCR 73 at 75) but the essence of expert evidence in the form of opinion is that it is constituted by the drawing of inferences from assumed or observed data: *Hannes v Director of Public Prosecutions (Cth) (No 2)* (2006) 165 A Crim R 151 at [286]. These should be proved to the court: *Dasreef Pty Ltd v Hawchar* (2011) 243 CLR 588; 85 ALJR 694; [2011] HCA 21; *Makita (Australia) Pty Ltd v Sprowles* (2001) 52 NSWLR 705; [2001] NSWCA 305 at [85].

Where expert evidence is as to fact, it has no special character or criteria for admissibility. It must be relevant and it must be probative. In general it should not be in the form of hearsay: see, though, ss 56 and 60 of the *Evidence Act 2008*. Its bases should be clearly articulated: *Daniels v Western Australia* (2000) 178 ALR 542; [2000] FCA 858 at [30]; *Neowarra v Western Australia* (2003) 134 FCR 208; [2003] FCA 1399 at [38]. Often, though, experts are particularly well placed to give evidence of their observations by reason of their training as observers of various phenomena and their capacity to organise and categorise their observations – this is especially so in relation to accountants, forensic scientists and medical practitioners, for instance.

[14.20] Evidence in the form of opinion

Under s 76 of the *Evidence Act 2008*, the starting point of admissibility evaluation is that opinion evidence is not permitted: “evidence of an opinion is not admissible to prove the existence of a fact about the existence of which the opinion is expressed”. This is the “opinion rule”. However, by virtue of s 78 the opinion rule does not apply to evidence of an opinion expressed by a person if:

- (a) the opinion is based on what the person saw, heard or otherwise perceived about a matter or event; and
- (b) evidence of the opinion is necessary to obtain an adequate account or understanding of the person's perception of the matter or event.

This leaves latitude for lay witnesses to express opinions that are shorthand versions of fact or where it is convenient for the court to hear evidence in this form. See further *Lithgow City Council v Jackson* (2011) 244 CLR 352; 85 ALJR 1130, which held that, in that particular case, an inference that there was a question whether a fall causing injuries happened in a particular way was not an opinion within the meaning of s 76.

The other major exception to the opinion rule is that experts are permitted to express opinions in certain circumstances. Under s 79 of the *Evidence Act 2008*, if a person has “specialised knowledge based on the person's training, study or experience, the opinion rule does not apply to evidence of an opinion of that person that is wholly or substantially based on that knowledge”.

The majority observed, in *Dasreef Pty Ltd v Hawchar* (2011) 243 CLR 588; 85 ALJR 694; [2011] HCA 21 at [31]:

[T]he opinion rule is expressed as it is in order to direct attention to why the party tendering the evidence says it is relevant. More particularly, it directs attention to the finding which the tendering party will ask the tribunal of fact to make. In considering the operation of s 79(1) it is thus necessary to identify why the evidence is relevant: why it is “evidence that, if it were accepted, could rationally affect (directly or indirectly) the assessment of the probability of the existence of a fact in issue in the proceeding”. That requires identification of the fact in issue that the party tendering the evidence asserts the opinion proves or assists in proving.

See further *Dasreef Pty Ltd v Hawchar* (2011) 243 CLR 588; 85 ALJR 694; [2011] HCA 21 at [30]–[43] per French CJ, Gummow, Hayne, Crennan, Kiefel and Bell JJ and [55]–[59] per Heydon J; and *Honeysett v The Queen* (2014) 253 CLR 122; [2014] HCA 29 at [22]–[25].

[14.30] Specialised knowledge

“Knowledge” in the context of s 79 has been held to “connote more than subjective belief or unsupported speculation. The term applies to any body of known facts or to any body of ideas inferred from such facts or accepted as truths on ‘good grounds’”: *R v Tang* (2006) 65 NSWLR 681; 161 A Crim R 377; [2006] NSWCCA 167 at [138] per Spigelman CJ, applying *Daubert v Merrell Dow Pharmaceuticals* 509 US 579 (1993) at 606. There is no authoritative exposition on what “specialised” means but it is likely to require that the knowledge is outside the acquaintance or experience of ordinary people: see Freckelton I, *Expert Evidence: Law, Practice, Procedure and Advocacy* (6th ed, Thomson Reuters, 2019); Odgers S, *Uniform Evidence Law* (17th ed, Thomson Reuters, 2022); and Gans J, Palmer A and Roberts A, *Uniform Evidence* (3rd ed, Oxford University Press, 2019). See also Edmond G, “The admissibility of forensic science and medicine evidence under the Uniform Evidence Law” (2014) 38 Crim LJ 136. See further *Nicholls v Michael Wilson & Partners Ltd* [2012] NSWCA 383.

The provenance of specialised knowledge is not determinative of its admissibility (that is, whether formally or informally acquired) but it is necessary for the knowledge to be based on the person's training, study or experience. Any opinion expressed in turn must be wholly or substantially based upon the specialised knowledge: *HG v The Queen* (1999) 197 CLR 414. This requires that it must be grounded in known facts or a body of ideas inferred from such facts, or accepted as truths on good grounds. This does not necessarily mean that the opinions must be “reliable” in the sense in which the term is used in *Daubert v Merrell Dow Pharmaceuticals*, 509 US 579 (1993) (that is, by reference to whether they are falsifiable, characterised by controls, are peer reviewed and regarded as generally acceptable within the scientific community), but it is likely to require

that the knowledge be derived from a formal, organised discipline: see *R v Bonython* (1984) 38 SASR 45.

The onus is on the party seeking to have the evidence admitted to demonstrate that the person has specialised knowledge based on his or her training, study or experience which enables the expert to give an opinion on a matter that is relevant to an issue in a proceeding. That party must also demonstrate that the opinion is wholly or substantially based on that knowledge: *Dasreef Pty Ltd v Hawchar* (2011) 243 CLR 588; 85 ALJR 694; [2011] HCA 21 at 603–604 (CLR) per French CJ, Gummow, Hayne, Crennan, Kiefel and Bell JJ. Failure to demonstrate that a witness's opinion is based on specialised knowledge affects admissibility, not weight: *Dasreef Pty Ltd v Hawchar* (2011) 243 CLR 588; 85 ALJR 694; [2011] HCA 21 at 605 (CLR) per French CJ, Gummow, Hayne, Crennan, Kiefel and Bell JJ; *Gunnensen v Henwood* [2011] VSC 440 at [64] per Dixon J; and *Honeysett v The Queen* (2014) 253 CLR 122; [2014] HCA 29 at [42]–[43].

In *Volpe v The Queen* [2020] VSCA 268 it was held that a police officer who had no tertiary qualification had specialised knowledge with respect to the examination of shoeprint impressions, which was based principally on training and practical experience.

Townsend v The King [2022] VSCA 201 is a good example of a case where the Court carefully scrutinised each conclusion made by a qualified expert (a consultant paediatric physician) to determine whether each conclusion (relating to the cause of injuries to a victim) was based wholly or substantially on the witness' specialised knowledge.

In *R v Whitfield* [2024] NSWCCA 124, the Court re-iterated the following observations in admitting expert evidence of the effects of blood alcohol content on the operation of a jet ski:

[37] In conformity with the cautions offered by Dixon CJ in *Clark v Ryan* at 491-492, referring to what was said by Williams J in *Reg v Silverlock* [1894] UKLawRpKQB 152; (1894) 2 QB 766 at 769, “[n]o one should be allowed to give evidence as an expert unless his profession or course of study gives him more opportunity of judging than other people.” No person may be “qualified as an expert to express his conjectures, which [are] paraded as scientific opinions”: per Menzies J in *Clark v Ryan* at 501.

[14.40] Evidence about child development and child behaviour

Section 79(2) of the *Evidence Act 2008* provides for expert evidence to be admissible about the nature of sexual offences and the behaviour of alleged victims (see *Criminal Procedure Act 2009*, s 388):

To avoid doubt, and without limiting subsection (1) –

- (a) a reference in that subsection to specialised knowledge includes a reference to specialised knowledge of child development and child behaviour (including specialised knowledge of the impact of sexual abuse on children and their development and behaviour during and following the abuse); and
- (b) a reference in that subsection to an opinion of a person includes, if the person has specialised knowledge of the kind referred to in paragraph (a), a reference to an opinion relating to either or both of the following –
 - (i) the development and behaviour of children generally;
 - (ii) the development and behaviour of children who have been victims of sexual offences, or offences similar to sexual offences.

This is intended to reduce impediments to reception of counter-intuitive expert opinion evidence, generally adduced by the prosecution, in relation to the child behaviour and development relevant to physical and sexual abuse: see *R v B* [1987] 1 NZLR 362; *R v Accused* [1989] 1 NZLR 714; *J v The Queen* (1994) 75 A Crim R 522; *F v The Queen* (1995) 83 A Crim R 502; *C v The Queen* (1993) 60 SASR 467; *S v The Queen* (2001) 125 A Crim R 526; *Bellemore v Tasmania* (2006) 16 Tas R 364; 170 A Crim R 1; [2006] TASSC 111; and *MA v The Queen* (2013) 226 A Crim R 575; [2013] VSCA 20.

[14.50] Common knowledge and ultimate issue rules

At common law, experts were not permitted to testify about a matter of common knowledge (see *Murphy v The Queen* (1989) 167 CLR 94) and were not permitted to give evidence about an ultimate issue: see *Wilson v County Court of Victoria* [2007] VSC 444. However, s 80 of the *Evidence Act 2008* provides that evidence of an opinion is not inadmissible only because it is about a fact in issue or an ultimate issue, or a matter of common knowledge.

[14.60] General principles

In *Makita (Australia) Pty Ltd v Sprowles* (2001) 52 NSWLR 705; [2001] NSWCA 305 at [85], Heydon JA summarised a number of the relevant principles as follows:

[I]f evidence tendered as expert opinion evidence is to be admissible, it must be agreed or demonstrated that there is a field of “specialised knowledge”; there must be an identified aspect of that field in which the witness demonstrates that by reason of specified training, study or experience, the witness has become an expert; the opinion proffered must be “wholly or substantially based on the witness's expert knowledge”; so far as the opinion is based on facts “observed” by the expert, they must be identified and admissibly proved by the expert, and so far as the opinion is based on “assumed” or “accepted” facts, they must be identified and proved in some other way; it must be established that the facts on which the opinion is based form a proper foundation for it; and the opinion of an expert requires

demonstration or examination of the scientific or other intellectual basis of the conclusions reached: that is, the expert's evidence must explain how the field of “specialised knowledge” in which the witness is expert by reason of “training, study or experience”, and on which the opinion is “wholly or substantially based”, applies to the facts assumed or observed so as to produce the opinion propounded. If all these matters are not made explicit, it is not possible to be sure whether the opinion is based wholly or substantially on the expert's specialised knowledge. If the court cannot be sure of that, the evidence is strictly speaking not admissible, and, so far as it is admissible, of diminished weight. And an attempt to make the basis of the opinion explicit may reveal that it is not based on specialised expert knowledge, but, to use Gleeson CJ's characterisation of the evidence in *HG v The Queen* (at 428 [41]), on “a combination of speculation, inference, personal and second-hand views as to the credibility of the complainant, and a process of reasoning which went well beyond the field of expertise”.

These principles have been elaborated on more recently by the High Court in *Lang v The Queen* (2023) 97 ALJR 758; [2023] HCA 29 where it was held that:

[223] ...[T]he rules set out in *Makita (Australia) Pty Ltd* reflect three fundamental requirements that must be met, in addition to the ordinary rules of evidence, before the opinion evidence of an expert witness can be admissible... The first is that the expert witness must identify an accepted field of expertise that they have which can be applied to the facts. The second is that the expert witness must identify a factual basis or foundation for the opinion in the admissible evidence or matters that are, or can be taken to be, before the court. The third is that the expert witness must expose how their expertise is the substantial basis connecting the factual foundation to the opinion given.

[224] As to the first requirement, an accepted field of expertise requires specialised knowledge. It concerns knowledge which is not possessed by ordinary people... and which is “sufficiently organised or recognised to be accepted as a reliable body of knowledge or experience”...

[225] As to the second requirement, the need for an expert to identify the factual basis or foundation for the opinion in the admissible evidence or matters that are, or can be taken to be, before the court is essential in order for the strength of the opinion to be assessed and for the opinion to be tested in cross-examination....

[226] As to the third requirement, there are two reasons for it. First, without demonstration that the expertise has sufficiently connected the exposed factual foundation to the opinion given by reference to expertise, then there is no basis to conclude that the opinion is “expert”: if “on the proven facts a judge or jury can form their own conclusions without help, then the opinion of an expert is unnecessary”... Furthermore, evidence of a sufficient connection

based on expertise, between the exposed factual foundation and the opinion, is necessary to expose whether the expert has ventured beyond the area of their expertise...

...

[228] “Sufficiency” is, however, an elastic concept. The extent of required explanation of how the opinion expressed is based upon expertise can vary and will involve issues of judgment. In some cases where expert evidence is given on a matter which is not in real dispute, the expert may not be required to expose in great detail the basis upon which the opinion is based on their expertise. But the more critical the opinion is to the matters in issue, and the more contested the opinion, the more necessary it will be that the opinion expose the expertise upon which it is based.

See also [14.30] Specialised knowledge; and *Nicholls v Michael Wilson & Partners Ltd* [2012] NSWCA 383.

[14.70] Certificates of expert evidence

Under s 177 of the *Evidence Act 2008*, a procedure is established for ready tendering of expert evidence:

- (1) Evidence of a person's opinion may be adduced by tendering a certificate (expert certificate) signed by the person that –
 - (a) states the person's name and address; and
 - (b) states that the person has specialised knowledge based on his or her training, study or experience as specified in the certificate; and
 - (c) sets out an opinion that the person holds and that is expressed to be wholly or substantially based on that knowledge.
- (2) Subsection (1) does not apply unless the party seeking to tender the expert certificate has served on each other party –
 - (a) a copy of the certificate; and
 - (b) a written notice stating that the party proposes to tender the certificate as evidence of the opinion.
- (3) Service must be effected not later than –
 - (a) 21 days before the hearing; or
 - (b) if, on application by the party before or after service, the court substitutes a different period – the beginning of that period.
- (4) Service for the purposes of subsection (2) may be proved by affidavit.
- (5) A party on whom the documents referred to in subsection (2) are served may, by written notice served on the party proposing to tender the expert certificate, require the party to call the person who signed the certificate to give evidence.

- (6) The expert certificate is not admissible as evidence if such a requirement is made.
- (7) The court may make such order with respect to costs as it considers just against a party who has, without reasonable cause, required a party to call a person to give evidence under this section.

[14.80] High Court authorities

- *Chamberlain v The Queen (No 2)* (1984) 153 CLR 521.
- *Clark v Ryan* (1960) 103 CLR 486.
- *Dasreef Pty Ltd v Hawchar* (2011) 243 CLR 588; 85 ALJR 694; [2011] HCA 21.
- *Farrell v The Queen* (1998) 194 CLR 286.
- *HG v The Queen* (1999) 197 CLR 414.
- *Honeysett v The Queen* (2014) 253 CLR 122.
- *Murphy v The Queen* (1989) 167 CLR 94.
- *Osland v The Queen* (1998) 197 CLR 316; 73 ALJR 173; [1998] HCA 75.
- *Velevski v The Queen* (2002) 76 ALJR 402; [2002] HCA 4.
- *Weal v Bottom* (1966) 40 ALJR 436.

[14.90] Important references

- Arenson K and Bagaric M, *Rules of Evidence in Australia* (LexisNexis, 2007).
- Australian Law Reform Commission, *Uniform Evidence*, ALRC 102 (2005).
- Bellew G, Arthur J, Boas G and Chifflet P, *Australian Uniform Evidence Law: Principles and Context* (LexisNexis, 2019).
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